



File No.: EXP202313840

RESOLUTION OF FILE OF ACTIONS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 15, 2023, A.A.A. filed a complaint with the Spanish Agency for Data Protection against CORREOS EXPRESS PAQUETERIA URGENTE, S.A., S.M.E with NIF A28799120 (hereinafter, the complained party or CORREOS EXPRESS).

The reasons for the complaint are as follows:

The complainant states that they purchased a series of products from the entity PROMOFARMA through its website, with the complained party being responsible for managing the delivery of the package containing those products; however, the aforementioned package was not delivered to their home, prompting them to file a complaint with PROMOFARMA.

PROMOFARMA informed them that the package containing the purchase had been delivered on August 3, 2023, by the complained party, to a third party "B.B.B."

The complainant does not know the person to whom the package was delivered, and therefore understands that it has been delivered with their personal data to a third party, without their consent. Along with the complaint, they provide a copy of the delivery note of the package with their data, the communications exchanged with PROMOFARMA, as well as the written response to a complaint filed with CORREOS EXPRESS regarding the events that occurred, in which they closed the incident and urged the complainant to contact the sender of the shipment.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to CORREOS EXPRESS, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on October 7, 2023, as evidenced by the receipt certificate in the file.

On November 2, 2023, this Agency received a response indicating that "...After the internal investigation initiated by Correos Express, as outlined in section 1 of this document, the following facts have been clarified:

On August 2, 2023, a shipment was processed, with shipment code No. ***REFERENCIA.1, whose recipient was the complainant and the sender was the company PROMOFARMA ECOM, S.L., which is a client of Correos Express as both entities signed a commercial agreement for the provision of transport services dated June 15, 2022. We attach to this document as ANNEX 1 the shipment data that appears in the information systems of Correos Express and as ANNEX 2 the commercial agreement between PROMOFARMA ECOM, S.L., and Correos Express.

The following day, August 3, 2023, the carrier responsible for delivering the shipment arrived at the destination address. At this point, we must inform that the delivery person is an employee of the transport company DAFNEVIA, S.L., a provider of Correos Express. We attach to this document the following documentation that certifies the commercial relationship between DAFNEVIA, S.L. and Correos Express: Award Agreement for Specific Contract CO2021023 002, in which DAFNEVIA, S.L. is awarded Lot No. 3 (ANNEX 3); Specific contract for collection, transport, and distribution of parcels at the national level CO2021023 002 (ANNEX 4); and Treatment Assignment Contract signed between DAFNEVIA, S.L. and Correos Express, which is part of the necessary documentation to be an approved supplier in the SDA CO2021023 (ANNEX 5).

Once this point was clarified and continuing with the account of the facts, the systems of Correos Express indicate that the shipment was delivered on August 3, 2023, at 9:30 AM at the address indicated in the destination address of the shipment. We provide the corresponding proof of delivery for this shipment as ANNEX 6.

The day after the delivery, on August 4, 2023, the complainant contacted the Correos Customer

Service by phone indicating that they had not received their shipment. Despite the shipment being marked as delivered, Correos Express opened a complaint that was finally closed on August 11, 2023. On that date, an email was sent to the complainant indicating that their shipment could not be located and that they should contact the sender. We attach to this document the information related to this complaint that appears in the information systems of Correos Customer Service as ANNEX 7 and as ANNEX 8 the email sent to the complainant in response to their complaint.

After the resolution of this complaint, Correos Express did not receive any further communication from the complainant or the sender of the shipment until October 6, 2023, when Correos Express received the request for the transfer of the complaint and request for information from the Spanish Agency for Data Protection.

At the moment the transfer of the complaint was received by the AEPD, as we have already indicated, internal investigations were immediately initiated to clarify this matter. As part of these measures, the delivery person from the supplier company responsible for making the shipment was requested...

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The object of the claim is a statement regarding the delivery of this shipment, in which the delivery person stated that they did not remember the events that occurred due to the time elapsed since the date of delivery. We attach the statement of the delivery person as ANNEX 9 to this document.

At this point, we consider it essential to point out that Correos Express provides instructions on how deliveries should be carried out to all its suppliers, who in turn are obliged to convey this information to all their drivers who deliver shipments for Correos Express. Furthermore, Correos Express periodically sends reminders to transport companies to reinforce this information, especially the importance of only delivering shipments to the recipients or third parties authorized by them. We attach as ANNEX 10 the latest communication sent to the supplier DAFNEVIA, S.L., on October 3, 2023, reminding how deliveries of shipments operated by Correos Express should be made...

THIRD: On November 15, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Moreover, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, as CORREOS EXPRESS carries out, among other processes, the retention and use of the following personal data of individuals, such as: name, surname, location data, etc.

CORREOS EXPRESS carries out this activity in its capacity as data controller, as it is the entity that determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

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Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter referred to as security breach) as "all breaches of security that lead to the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or to the unauthorized communication or access to such data."

III

Presumption of Innocence

In the present case, a claim is made due to the delivery of a package intended for the claimant to "B.B.B.", which leads the claimant to consider that the confidentiality of their personal data may have been compromised. Specifically, the claimant has stated that data included on the shipping label, among other things, their name and surname and postal data, were exposed to a third party (the person performing concierge functions).

This Agency understands that confidentiality will only be affected when access is granted to a third party to personal data that is not public or that was not previously known to that third party. Thus, the delivery of a package to a person performing concierge functions in the same building, when no additional data beyond what is strictly necessary for delivery (name and address) is included in the postal shipment, does not compromise the confidentiality of the recipient's personal data, as no personal data of the claimant that the recipient did not already know is disclosed.

In conclusion, in the case at hand, the examination of the documents provided in the transfer proceedings highlights the absence of evidence capable of justifying the initiation of a sanctioning procedure, as it has not been established that personal data of the claimant, beyond their name and address, were exposed to unauthorized third parties, given that the package was delivered to the person performing concierge functions in the same building where the claimant resides, and there is no record that any data unknown to the recipient was disclosed. The delivery receipt issued by the courier company, submitted along with the claim, does not serve to substantiate such a circumstance.

In this regard, it should be emphasized that in the administrative sanctioning field, the principles inspiring criminal law apply, with some nuances but without exceptions, and the principle of presumption of innocence has full effect, which must govern without exceptions in the sanctioning framework and must be respected in the imposition of any sanctions. The Constitutional Court in Judgment 76/1990 (STC) considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

According to this approach, Article 53.2 of the LPACAP establishes that, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights: "a) (...) b) The presumption of non-existence of administrative responsibility until proven otherwise. As the Supreme Court clarified in its Judgment of October 26, 1998, the validity of the principle of presumption of innocence "does not oppose the fact that judicial conviction in a process may be formed on the basis of circumstantial evidence, but for this evidence to undermine such presumption, it must satisfy the following constitutional requirements: the indications must be fully proven – they cannot be mere suspicions – and it must explicitly state the reasoning by which, based on the proven indications, it has reached the conclusion that the accused committed the infringing conduct, since otherwise, neither the subsumption would be legally founded nor would there be a way to determine

whether the deductive process is arbitrary, irrational, or absurd, that is, whether the right to the presumption of innocence has been violated by considering that the evidentiary activity can be understood as incriminating.”

In this regard, it is necessary to distinguish true circumstantial evidence from mere suspicions or conjectures. The Constitutional Court has stated in its Judgment 24/1997 that “the criteria for distinguishing between circumstantial evidence capable of undermining the presumption of innocence and mere suspicions are based on the fact that: a) The circumstantial evidence must derive from fully proven facts. b) The facts constituting the crime must be deduced from those indications (completely proven facts) through a reasoned mental process in accordance with the rules of human reasoning, explicitly stated in the convicting judgment (SSTC 174/1985, 175/1985, 229/1988, 107/1989, 384/1993, and 206/1994, among others).”

In short, the principle of presumption of innocence prevents attributing an administrative infringement when there is no obtained and verified incriminating evidence that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them.

In this case, as stated, there are no rational indications that would allow attributing to the claimed party the commission of the infringements of the personal data protection regulations reported, therefore, the right to the presumption of innocence that protects them cannot be considered undermined.

IV

Conclusion

Therefore, based on what has been indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

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Thus, as it has not been possible to attribute any responsibility for the exposure of the personal data of the claiming party, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to CORREOS EXPRESS PAQUETERIA URGENTE, S.A., S.M.E and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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